

EPA's policy is that all comments received will be included in the public docket without change including any personal information provided, unless the comment includes profanity, threats, information claimed to be Confidential Business Information (CBI) or other information whose disclosure is restricted by statute.

Submit written comments and recommendations to OMB for the proposed information collection within 30 days of publication of this notice to www.reginfo.gov/public/do/PRAMain. Find this particular information collection by selecting "Currently under 30-day Review—Open for Public Comments" or by using the search function.

FOR FURTHER INFORMATION CONTACT:

Peggy Vyas, Environmental Protection Agency, 1200 Pennsylvania Ave. NW, Washington, DC 20460; telephone number: 202-566-0453; vyas.peggy@epa.gov.

SUPPLEMENTARY INFORMATION: This is a proposed extension of the ICR, which is currently approved through June 30, 2026. An agency may not conduct or sponsor and a person is not required to respond to a collection of information unless it displays a currently valid OMB control number.

Public comments were previously requested via the **Federal Register** on December 11, 2025 during a 60-day comment period (90 FR 57464). This notice allows for an additional 30 days for public comments. Supporting documents, which explain in detail the information that the EPA will be collecting, are available in the public docket for this ICR. The docket can be viewed online at www.regulations.gov or in person at the EPA Docket Center, WJC West, Room 3334, 1301 Constitution Ave. NW, Washington, DC. The telephone number for the Docket Center is 202-566-1744. For additional information about EPA's public docket, visit <http://www.epa.gov/dockets>.

Abstract: In 2008, 2015, and 2018, the U.S. Environmental Protection Agency (EPA) published revisions to the "definition of solid waste" (DSW) that exclude certain industrial hazardous secondary materials from regulation as "solid waste" and "hazardous waste" under Subtitle C of the Resource Conservation and Recovery Act (RCRA). Specifically, EPA amended 40 CFR part 261 to provide that hazardous secondary materials reclaimed under the control of the generator are not solid wastes if specified conditions are met. EPA also amended Part 261 to provide that hazardous secondary materials that are generated and then transferred to

another person for the purpose of reclamation are not solid waste, provided that specified conditions are met. Finally, EPA finalized other amendments to address particular issues, including standards in Part 260 to enable a person to apply to EPA for a formal determination that a material is not discarded and therefore not a solid waste and to codify the RCRA concept of "legitimate recycling".

The RCRA DSW exclusions are currently organized around six requirements:

Requirement 1: DSW off-site transfer-based exclusion;

Requirement 2: DSW generator-controlled exclusion;

Requirement 3: Solid waste variances and non-waste determinations;

Requirement 4: DSW "remanufacturing" exclusion;

Requirement 5: Required recordkeeping for speculative accumulation;

Requirement 6: Export requirements.

Form Numbers: None.
Respondents/affected entities: Entities potentially affected by this action are private business or other for-profit, as well as State, Local, or Tribal governments.

Respondent's obligation to respond: Required to obtain or retain a benefit (42 U.S.C. 6921, 6922, 6923, and 6924.)

Estimated number of respondents: 4,348.

Frequency of response: On occasion.
Total estimated burden: 38,396 hours per year. Burden is defined at 5 CFR 1320.03(b).

Total estimated cost: \$3,205,354 (per year), includes \$20,331 annualized capital or operation & maintenance costs.

Changes in the Estimates: There is an increase 11,341 hours in the total estimated respondent burden compared with the ICR currently approved by OMB. This increase is due to adjustments to the estimates.

Courtney Kerwin,

Deputy Director, Data and Enterprise Programs Division.

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FEDERAL MARITIME COMMISSION

[Docket No. 26-04]

**Orleans International, Inc.,
Complainant v. Hapag Lloyd AG,
Respondent; Notice of Filing of
Amended Complaint**

Notice is given that an amended complaint has been filed with the

Federal Maritime Commission (the "Commission") by Orleans International, Inc. (the "Complainant") against Hapag Lloyd AG (the "Respondent"). Complainant states that the Commission has subject-matter jurisdiction over the amended complaint pursuant to the Shipping Act of 1984, as amended, 46 U.S.C. 41301 *et seq.*, and personal jurisdiction over Respondent as a vessel-operating ocean common carrier, as defined in 46 U.S.C. 40102(18).

Complainant is a corporation existing under the laws of the state of Michigan with its principal place of business located in Farmington Hills, Michigan.

Complainant identifies Respondent Hapag Lloyd AG as a company existing under the laws of the Federal Republic of Germany with its principal place of business located in Hamburg, Germany, whose agent in the United States is Hapag-Lloyd (America) LLC, a limited liability company existing under the laws of the state of Delaware with its principal place of business located in Atlanta, Georgia.

Complainant alleges that Respondents violated 46 U.S.C. 41102(c); 41104(a)(10) and (14); and 46 CFR 545.5. Complainant alleges these violations arose from the assessment of demurrage and detention charges during periods of time in which Complainant's ability to pick up or return containers was constrained due to circumstances beyond its control, Respondent's lack of engagement in attempted dispute resolution, and other acts or omissions of Respondent.

An answer to the amended complaint must be filed with the Commission within 25 days after the date of service.

The full text of the amended complaint can be found in the Commission's electronic Reading Room at <https://www2.fmc.gov/readingroom/proceeding/26-04/>. This proceeding has been assigned to the Office of Administrative Law Judges. The initial decision of the presiding judge shall be issued by March 19, 2027, and the final decision of the Commission shall be issued by October 4, 2027.

(Authority: 46 U.S.C. 41301; 46 CFR 502.61(c))

Served: June 16, 2026.

David Eng,
Secretary.

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